

SECOND AMENDMENT TO MSA — PROPOSED

MSA-2023-0142

Amendment #: 2 (DRAFT)

Proposed Effective: April 1, 2024

Status: PENDING REVIEW

This Second Amendment (the "Amendment") to the Master Service Agreement dated January 15, 2023 (the "Agreement"), as amended by the First Amendment dated February 1, 2024, is proposed by Acme Corporation for execution by both parties.

WHEREAS, the parties wish to further extend their commercial relationship and update certain terms;

NOW, THEREFORE, the parties agree as follows:

1. Section 1 (Term) is amended as follows:

The term of the Agreement is hereby extended by an additional two (2) years, from January 14, 2026 to **January 14, 2028**. Furthermore, this Agreement shall automatically renew for successive one (1) year periods unless either party provides written notice of non-renewal at least **thirty (30) days** prior to the expiration of the then-current term.

2. Section 4 (Termination) is amended as follows:

Either party may terminate this Agreement without cause upon **thirty (30) days** prior written notice to the other party. [Previously: ninety (90) days]

3. Section 6 (Indemnification) is replaced in its entirety as follows:

BrightPath Solutions Inc. (the "Provider") shall indemnify, defend, and hold harmless Acme Corporation, its officers, directors, employees, and agents from and against any and all third-party claims, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising from or related to: (a) Provider's performance of services under this Agreement; (b) Provider's breach of any representation or warranty; (c) Provider's negligence or willful misconduct; (d) any infringement of intellectual property rights by Provider's deliverables. **Acme Corporation shall have no reciprocal indemnification obligation under this Agreement.**

4. Section 9 (Limitation of Liability) is amended as follows:

EACH PARTY'S AGGREGATE LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED **FIVE HUNDRED THOUSAND DOLLARS (\$500,000)** PER CONTRACT YEAR. [Previously: Two Million Dollars (\$2,000,000)]

5. Section 12 (Governing Law) is amended as follows:

This Agreement shall be governed by and construed in accordance with the laws of the **State of Texas**, without regard to its conflict of laws principles. Any dispute shall be resolved through binding arbitration in **Houston, Texas**, administered by the American Arbitration Association. [Previously: State of Delaware / Wilmington, Delaware]

6. No Other Changes

All other terms and conditions of the Agreement and First Amendment remain in full force and effect, unchanged by this Amendment.

ACME CORPORATION

By: *Thomas Chen*, VP of Technology | Date: March 15, 2024

BRIGHTPATH SOLUTIONS INC.

By: _____ | Date: _____

***** PENDING BRIGHTPATH LEGAL REVIEW — DO NOT EXECUTE *****